IN THE ARKANSAS COURT OF APPEALS

STATE OF ARKANSAS

PLAINTIFF

v.

JAMES TERRY

DEFENDANT

CASE NO. CR-23-103

PETITION FOR WRIT OF CERTIORARI TO COMPLETE THE RECORD, OR, IN THE ALTERNATIVE, MOTION TO REMAND TO SETTLE THE RECORD

Comes now, Defendant, James Terry, by and through his attorney, Eugene Clifford, and for his Petition or in the alternative Motion pursuant to Rule 3-5(a) of this Court's Rules, states the following:

1. The Defendant was found guilty on August 18th, 2022 for Trafficking a controlled substance, 480 Months ADC; Poss. Of Drug Paraphernalia, 60 Months ADC; Simultaneous Possession, 480 Months ADC; Poss. Of Drug Paraphernalia, 240 Months; Maintaining a Drug premises, 60 Months; Poss of Firearms by Certain Person, 240 Months; all running concurrent.
2. A Petition to proceed in forma pauperis was filed and denied by the Circuit Court.

3. A partial record was filed to file another petition to proceed in forma pauperis with the appellate court. The Defendant is indigent, has spent the past two years in jail, and has no assets or income left to complete his appeal.
4. The Court Reporter, has delivered an invoice of around $1,900.00 but, Mr. Terry cannot pay for the transcript.
5. Counsel has not been paid for any services concerning the appeal, however is staying on to make sure Mr. Terry's rights are preserved to the best of counsel's ability.
6. A petition for IFP is now pending in this court and if granted would allow the state to pay for the transcript and counsel can ask the Public Defender's office to substitute in an appellate counsel.
7. Pursuant to Rule 3-5 of this Court's Rules, Appellant requests that this Court issue a Writ of Certioari to the Court Reporter, directing her to complete the record within the next thirty (30) days from the entry of the writ.
8. Alternatively, if the Court deems it necessary to remand to the circuit court to settle the record, Appellant moves that the case be remanded for that purpose.
9. Further, Appellant requests that his time for filing a brief in this matter be stayed pending the disposition of this petition.
10. This petition is not made for purposes of delay.
11. The Petitioner asks for any such relief the Court sees as just and equitable.

WHEREFORE, the Defendant prays this Court to issue a writ of certiorari to the Court Reporter directing her to complete the record within 30 days from the writ being issued or Alternatively the case be remanded to settle the record, and for any such relief the Court sees as just and equitable.

Respectfully Submitted,

/s/Eugene Clifford
Eugene Clifford #2012100
1014 W. 3rd St.
Little Rock, AR 72201
501-404-0515

CERTIFICATE OF SERVICE

I, Eugene Clifford, hereby state on oath that I have served a true and correct copy of the foregoing on the Clerk of this Court.

/s/Eugene Clifford